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PART I

Acts, Ordinances, President's Orders and Regulations

GOVERNMENT OF PAKISTAN

**MINISTRY OF LAW, JUSTICE, HUMAN RIGHTS AND
PARLIAMENTARY AFFAIRS**

(Law, Justice and Human Rights Division)

Islamabad, the 18th August, 2005

No. F. 2(1)/2005-Pub.—The following Ordinance promulgated by the President is hereby published for general information:—

ORDINANCE No. XII OF 2005

AN

ORDINANCE

further to amend the Societies Registration Act, 1860, in its application to the Islamabad Capital Territory

WHEREAS it is expedient further to amend the Societies Registration Act, 1860 (XXI of 1860), in its application to the Islamabad Capital Territory for the purposes hereinafter appearing;

AND WHEREAS the National Assembly is not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

(719)

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan, the President is pleased to make and promulgate the following Ordinance:—

1. **Short title and commencement.**—(1) This Ordinance may be called the Societies Registration (Amendment) Ordinance, 2005.

(2) It shall come into force at once.

2. **Addition of new section, Act XXI of 1860.**—In the Societies Registration Act, 1860 (XXI of 1860), after section 20, the following new section shall be added, namely:—

“21. *Registration of Deeni Madaris.*—(1) All Deeni Madaris by whatsoever name called shall not be established or operate without being registered under this Act and shall be subject to the provisions of this Act in addition to what is provided in sub-sections (2), (3) and (4).

(2) Every Deeni Madrassah shall submit annual report of its activities and performance to the Registrar.

(3) Every registered Deeni Madrassah shall maintain accounts of its actual expenses and receipts and annually submit its report to the Registrar. The Deeni Madrassah shall cause to be carried out audit of its accounts by an Auditor and submit its audited accounts to the Registrar.

(4) No Deeni Madrassah shall teach or publish any literature which promotes militancy or spreads sectarianism or religious hatred.

Explanation.—In this section “Deeni Madrassah” means a religious institution primarily for religious education and includes Jamia, Dar-ul-Uloom, School, College or University, or called by any other name, set-up for purposes of primarily imparting religious education and providing boarding and lodging facilities”.

GENERAL

PERVEZ MUSHARRAF,

President.

JUSTICE (RETD.)

MANSOOR AHMED,

Secretary.